



Prison Rape Elimination Act (PREA) of 2003

Sexual Abuse Annual Report 2021-2022

Introduction

All divisions of the North Carolina Department of Adult Correction (NCDAC) protect the public by collaboratively focusing on rehabilitation, protection, innovation, accountability, and professionalism.

NCDAC employees supervise offenders in prison, community confinement facilities, and in communities for those on probation, parole, and post release. The vision of the agency is that all divisions of the Department of Adult Correction will work collaboratively to create a safer North Carolina. The core values to be successful in meeting this mission and vision is through PRIDE: Protect - Respect - Integrity - Diversity – Excellence. It is with that same PRIDE that we strive to comply with national best practices and laws. The Prison Rape Elimination Act of 2003 (PREA) was enacted by Congress to address the problem of sexual abuse and sexual harassment of persons in the custody of U.S. correctional agencies. The Act applies to all public and private institutions that house adult offenders, residents or juvenile offenders and is also relevant to community-based agencies. The PREA National Standards were promulgated in August 2012. These standards established nationwide consistency in practices covering the areas of detection, prevention, reduction, and punishment of prison rape in confinement facilities.

NCDAC is committed to a standard of zero-tolerance of any personal misconduct between employees and offenders or residents. We are committed to providing professional and appropriate services to our offender population and supporting staff in accomplishing these responsibilities. NCDAC's mission is to protect the public by collaboratively focusing on rehabilitation, protection, innovation, accountability, and professionalism. PREA fits perfectly with that mission. Each employee is vital to the prevention and detection of offender/resident sexual abuse in order to protect offenders and safeguard our communities.

Pursuant to PREA National Standards §115.88, §115.288 and §115.388 data review for corrective action, the agency prepares an annual report of its findings and corrective actions for each facility. This report summarizes and compares the agency's accomplishments during the calendar year 2021 and 2022.

Message from the Secretary



Sexual abuse and sexual harassment in the correctional environment have a significant impact for both the criminal justice system and general public. The Prison Rape Elimination Act of 2003 (PREA) was enacted in recognition of the strong evidence that victims of sexual abuse suffer severe physical and psychological effects that may hinder their ability to reintegrate into the community upon their release.

The North Carolina Department of Adult Correction (NCDAC) is committed to a zero-tolerance standard by maintaining a program of prevention, detection, response, investigation, prosecution, and tracking. As required by PREA National Standards §115.88, §115.288, and §115.388, this annual report presents a summary of substantiated incidents of sexual abuse in confinement for the calendar years 2021-2022 and the corrective actions taken by the Department in response. This report also provides an assessment of the Department's progress in addressing sexual abuse in the previous calendar year. Our focus continues to be achieving sexual safety and to approach corrective action as a positive opportunity to achieve long-term, meaningful change within facilities under our operational control.

NCDAC prides itself on being proactive and focused on prevention in order to maintain the highest standards of correctional and rehabilitative treatment. The Department relies on stakeholders to assist in achieving its zero-tolerance goal and welcomes community partnerships to further its efforts.

Sincerely,



Todd E. Ishee

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Overview: North Carolina Department of Adult Correction

The North Carolina Department of Adult Correction (NCDAC) will uphold the law and protect the public by collaboratively focusing on rehabilitation with accountability and professionalism. The Department's major operational divisions include Institutions, Community Supervision, Comprehensive Health Services, Education Services, Rehabilitation and Reentry, Correction Enterprises, Central Engineering, Facility Management, and Food/Nutrition Services.

NC Department of Adult Correction (NCDAC)

Up until December 31, 2022, the Division of Adult Correction and Juvenile Justice (ACJJ) resided within the NC Department of Public Safety (NCDPS), and was responsible for the care, custody, and supervision of all adults and juveniles sentenced after conviction for violations or adjudicated for delinquent acts under North Carolina law. On January 1, 2023, NCDAC was established as a stand-alone Cabinet agency, and Juvenile Justice became the stand-alone Division of Juvenile Justice and Delinquency Prevention within NCDPS. Because these two entities were housed under the same Cabinet agency during the 2021 – 2022 reporting period, this report will reference data and activities involving the ACJJ division within NCDPS.

Adult Correction

Adult offenders, including youthful offenders, face sentences ranging from probation served in the community to active prison sentences served in one of the state's prison facilities. After prison, there is a period of post-release supervision for offenders to help them transition successfully back to the community. For offenders who commit technical violations of probation, they are remanded to Confinement in Response to Violation (CRV) facilities.

Juvenile Justice

Resident dispositions can include court ordered supervision by a Court Counselor in the community, short-term commitments at a residential facility, detention center, or for longer-term commitments, for serious and/or violent or chronic offenders they may be remanded to a youth development center. Delinquent, non-adjudicated, and at-risk residents may all receive services from programs in their communities.

Department Accomplishments

PROGRAM ADMINISTRATION

1. Attended 2022 National PREA Coordinator's Conference to learn and share the latest trends in PREA implementation, compliance, and sexual safety of offenders and staff.
2. Developed safety protocols for PREA audits amid COVID-19 pandemic to reduce and/or prevent the spread to others.
3. Implemented process improvement initiative to make data management practices more effective and efficient.
4. Implemented process improvements to the PREA program. As a result, sexual abuse and sexual harassment investigation completion rate improved by 90 percent.
5. Instituted policy recommendations for Prisons Policy Chapter F. 1600, Management of Security Posts.
6. Developed department level PREA policy in collaboration with Office of Policy and Strategic Planning.
7. Created background check process related to the NC Responsible Individual's List for NCDPS Juvenile Justice employees.

PREVENTION

1. In response to §115.16, which involves offenders with disabilities and offenders who are limited English proficient, the PREA office staff did the following:
 - a) Participated in a video relay services project with the agency's Americans with Disabilities Act office (ADA).
 - b) Planned and attended meetings in response to ADA efforts.
 - c) Distributed ADA educational posters statewide.
 - d) Provided PREA related training to ADA facility staff at ADA Conference.
 - e) Assisted with statewide project to develop a new communication system that would provide accessibility to announcements at 17 facilities for ADA offenders.
 - f) Purchased and distributed communication systems to 17 facilities in response to the ADA project.
2. In response to §115.15, limits to cross-gender viewing and searches, the agency replaced shower curtains in facilities with an expressed need to provide adequate privacy and maintaining safety and security.
3. Developed the educational plan for the screening process to comply with the American Correctional Association (ACA) guidelines.

RESPONSE

1. Attended quarterly meetings with Prisons Regional Directors to discuss program status by facility, review of statistical data by regions, enhanced program management, and continued compliance with agency policy and PREA National Standards.
2. Conducted internal assessments across institutions to evaluate the implementation of the Department's PREA program.
3. Enhanced existing screening protocols to identify potential high-risk victims, reporting and reviewed protocols to assist facility management in determining housing, bed, work, education, and program assignments.
4. Completed a staffing plan analysis in accordance with PREA National Standards.
5. Provided Prisons facility management with critical updates and corrective action plans during regional meetings. Participants included Region Directors, Region Security Coordinators, Wardens, and Associate Wardens.
6. Conducted virtual meetings with Prison facilities to address any identified PREA related concerns and provided updates to each of the following: Facility Management, PREA Investigators, PREA Compliance Managers, Support Staff, and Region Staff.
7. Conducted meetings with Prison facility PREA Compliance Managers to discuss corrective action plans for statewide consistency.
8. Continued to manage reported allegations of sexual abuse and sexual harassment external to the agency made by offenders, through Project Offender Reporting Sexual Abuse (O.R.S.A.).

TRAINING AND EDUCATION

1. Conducted quarterly virtual meetings with PREA Compliance Managers, PREA Support staff and PREA Investigators to provide on-going support.
2. Conducted training with the NCDPS Office of Special Investigation in accordance with National PREA Standards.
3. As a member of the National PREA Coordinators Working Group, the Director assisted with the planning of the 2022 conference for National PREA Coordinators. In addition, the Director was the facilitator for the registration subcommittee and worked with the national PREA Resource Center on logistics.
4. Participated in Annual Professional Development Virtual Training with NCDPS Rehabilitation and Reentry.
5. Implemented a monitoring process for the compliance with PREA standards for all/any contracted facilities housing offenders for NCDPS.
6. Conducted Case Analyst training for 25 Diagnostic Staff on screening.
7. Participated in virtual meetings with Juvenile Justice Community Stakeholders.
8. Implemented eLearning certification course for PREA Specialized Investigator Training.
9. Conducted critical training updates on Safe Search Practices to certified General Instructors, Wardens and PREA Compliance Managers.
10. Conducted Green Belt Process Improvement Trainings on investigations for PREA Investigators, Wardens, Regions Security Coordinators, PREA Compliance Managers,
11. Participated in Prison Administration: UNC Trans Health Educational Training event.

Definitions Related to Sexual Abuse and Sexual Harassment

SEXUAL ABUSE

For purposes of this report and statistical data, sexual abuse includes:

1. Sexual abuse of an offender, detainee, or resident by another offender, detainee, or resident; and
2. Sexual abuse of an offender, detainee, or resident by a staff member, contractor, or volunteer.

Sexual abuse of an offender, detainee, or resident by another offender, detainee, or resident includes any of the following acts, if the victim does not consent, is coerced into such act by overt or implied threats of violence, or is unable to consent or refuse:

1. Contact between the penis and the vulva or the penis and the anus, including penetration, however slight.
2. Contact between the mouth and the penis, vulva, or anus.
3. Penetration of the anal or genital opening of another person, however slight, by a hand, finger, object, or other instrument; and
4. Any other intentional touching, either directly or through the clothing, of the genitalia, anus, groin, breast, inner thigh, or the buttocks of another person, excluding contact incidental to a physical altercation.

Sexual abuse of an offender, detainee, or resident by a staff member, contractor, or volunteer (NOTE: previously staff sexual misconduct) includes any of the following acts, with or without consent of the offender, detainee, or resident:

1. Contact between the penis and the vulva or the penis and the anus, including penetration, however slight.
2. Contact between the mouth and the penis, vulva, or anus.
3. Contact between the mouth and any body part where the staff member, contractor, or volunteer has the intent to abuse, arouse, or gratify sexual desire.

4. Penetration of the anal or genital opening, however slight, by a hand, finger, object, or other instrument, that is unrelated to official duties or where the staff member, contractor, or volunteer has the intent to abuse, arouse, or gratify sexual desire.
5. Any other intentional contact, either directly or through the clothing, of or with the genitalia, anus, groin, breast, inner thigh, or the buttocks, that is unrelated to official duties or where the staff member, contractor, or volunteer has the intent to abuse, arouse, or gratify sexual desire.
6. Any attempt, threat, or request by a staff member, contractor, or volunteer to engage in the activities described in items (1)-(5) of this section.
7. Any display by a staff member, contractor, or volunteer of his or her uncovered genitalia, buttocks, or breast in the presence of an offender, detainee, or resident, and;
8. Voyeurism by a staff member, contractor, or volunteer. Voyeurism by a staff member, contractor, or volunteer means an invasion of privacy of an offender, detainee, or resident by staff for reasons unrelated to official duties, such as peering at an offender who is using a toilet in his or her cell to perform bodily functions; requiring an offender to expose his or her buttocks, genitals, or breasts; or taking images of all or part of an offender's naked body or of an offender performing bodily functions.

SEXUAL HARASSMENT

1. Repeated and unwelcome sexual advances, requests for sexual favors, or verbal comments, gestures, or actions of a derogatory or offensive sexual nature by one offender, detainee, or resident directed toward another: and;
2. Repeated verbal comments or gestures of a sexual nature to an offender, detainee, or resident by a staff member, contractor, or volunteer, including demeaning references to gender, sexually suggestive or derogatory comments about body or clothing, or obscene language or gestures.

Comparative Data

2021: The Department's Year in Review

During the 2021 calendar year, NCDPS ACJJ received a total of **806** offender and juvenile sexual abuse and sexual harassment allegations. The following outlines the total number of incidents reported and the outcome of investigations in 2021.

2021					
Incident Type	Substantiated	Unsubstantiated	Unfounded	Ongoing	Total
Offender on Offender Abusive Sexual Contact	10	106	33	0	149
Offender on Offender Nonconsensual Sexual Acts	0	21	9	0	30
Offender on Offender Sexual Harassment	8	129	29	0	166
Staff on Offender Sexual Abuse	25	166	121	0	312
Staff on Offender Sexual Harassment	4	92	51	0	147
Resident on Resident Abusive Sexual Contact	0	1	0	0	1
Resident on Resident Nonconsensual Sexual Act	0	0	0	0	0
Resident on Resident Sexual Harassment	0	0	0	0	0
Staff on Resident Sexual Misconduct	0	1	0	0	1
Staff on Resident Sexual Harassment	0	0	0	0	0
Total Allegations Received	47	516	243	0	806

Table 2: 2021 Incident Reports and Outcomes thru December 31, 2021. New reports received from allegations in previous years may affect data collection.

2021 Adult Correction Facilities: Substantiated Sexual Abuse Cases with Corrective Actions

2021	
Facility	Corrective Action(s)
ALBEMARLE CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Distributed PREA posters throughout the facility. 3. Made changes to bed, job, and/or program assignments protocols. 4. Discussed PREA related topics in shift line-ups. 5. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.
ALEXANDER CI	1. Distributed PREA Posters throughout the facility. 2. Discussed PREA related topics in shift line-ups.
ANSON CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 3. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which in the incident occurred. 4. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 5. Made changes to bed, job, and/or program assignments protocols. 6. Distributed information on ways to report for population. 7. Discussed PREA related topics in shift line-ups. 8. Conduct town hall meetings with population to discuss prevention. 9. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 10. Charges were filed by local law enforcement. Employee resigned prior to investigation. 11. Offender disciplinary was ordered. 12. Camera had a "censor bar" added to block the view into the cell to provide necessary privacy. 13. Disciplinary action was ordered on abuser. 14. Employee was charged and arrested by local law enforcement with a pending court date of April 5, 2022. Employee's probationary employment was terminated due to a separate incident.
CALDWELL CC	1. Reassessed the appropriateness of certain staff in PREA-related roles. 2. Made changes to bed, job, and/or program assignments protocols.
CENTRAL PRISON	1. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 2. Distributed information on ways for offenders to report PREA allegations. 3. Distributed first responder cards to all staff. 4. Discussed PREA related topics in shift line-ups. 5. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 6. Offender (Aggressor) was transferred to another facility. 7. Staff resigned prior to investigation.
CRAVEN CI	1. Reassess the appropriateness of certain staff in PREA-related roles. 2. Offender was placed in restrictive housing while investigation was conducted.

DAVIDSON CC	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassess the appropriateness of certain staff in PREA-related roles. 3. Distributed PREA posters throughout the facility. 4. Required all facility staff to completed Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 5. Made changes to bed, job, and/or program assignments protocols. 6. Distributed information on ways for offenders to report PREA allegations. 7. Distributed first responder cards for all staff. 8. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.
FRANKLIN CC	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassessed the appropriateness of certain staff in PREA-related roles. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 4. Made changes to bed, job, and/or program assignments protocols. 5. Distributed information on ways for offenders to report PREA allegations. 6. Distributed first responder cards to all staff. 7. Discussed PREA related topics in shift line-ups. 8. Help a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 9. Employee transferred to another institution pending the outcome of investigation.
GRANVILLE CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motions lights, or cameras) in the area in which the incident occurred. 3. Distributed PREA posters throughout the facility. 4. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 5. Made changes to bed, job, and/or program assignments protocols. 6. Distributed information on ways for offenders to report PREA allegations. 7. Distributed first responder cards to all staff. 8. Discussed PREA related topics in shift line-ups. 9. Revised facility policies or procedures. 10. Made staff aware of Red Flags dangers and ensured posters were displayed in facility.
HARNETT CI	1. Discussed PREA related topics in shift line-ups.
JOHNSTON CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassessed the appropriateness of certain staff in PREA-related roles. 3. Distributed PREA posters throughout the facility. 4. Made changes to bed, job, and/or program assignments protocols. 5. Distributed information on ways for offenders to report PREA allegations. 6. Discussed PREA related topics in shift line-ups. 7. Conducted town hall meetings with population to discuss prevention. 8. Revised facility policies or procedures. 9. Made changes to medical and/or mental health protocols or responses. 10. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 11. Employee was arrested.
LINCOLN CC	1. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 2. Implemented additional routine or unannounced rounds to prevent future incidents. 3. Reassessed the appropriateness of certain staff in PREA-related roles.

	- Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. - Law enforcement investigation conducted.
LUMBERTON CI	Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.
MOUNTAIN VIEW CI	- Distributed PREA posters throughout the facility. - Distributed first responder cards to all staff. - Discussed PREA related topics in shift line-ups. - Help a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. - Staff involved resigned under other type of investigation before this incident report was completed.
NASH CI	- Discussed PREA related topics in shift line-ups. - Staff was placed on non-contact post which led to their resignation. - Local LE contacted and former employee has been charged. Current practices seem to support an atmosphere where PREA concerns are reported and substantiated cases are few.
NCCIW	- Implemented additional routine or unannounced rounds to prevent future incidents. - Made changes to bed, job, and/or programs assignments protocols. - Distributed information on ways for offenders to report PREA allegations. - Discussed PREA related topics in shift line-ups. - Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. - Any alleged aggressor was reassigned away from the victim. - An alleged aggressor was reassigned to another facility pending the outcome of the investigation.
NEUSE CI	- Implemented additional routine or unannounced rounds to prevent future incidents. - Reassessed the appropriateness of certain staff in PREA-related roles. - Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. - Distributed PREA posters throughout the facility. - Made changes to bed, job, and/or program assignments protocols. - Distributed information on ways for offenders to report PREA allegations. - Distributed first responder cards to all staff. - Discussed PREA related topics in shift line-ups. - Staff were immediately put on “No Offender Contact” worked in the gatehouse or Administration Building.
NORTH PIEDMONT CRV	Conducted town hall meetings with population to discuss prevention.
PAMLICO CI	- Distributed information on ways to report for population. - Discussed PREA related topics in shift line-ups. - A staff member was reassigned and resigned under investigation.
PENDER CI	An alleged aggressor was placed in restrictive housing, pending disposition of the investigation.
PIEDMONT CI	- Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. - Completed a Post Incident Review (PIR) in accordance with standards.
RICHMOND CI	Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.

ROANOKE RIVER CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 3. Made changes to the number and placement of supervisory staff in the area in which an incident occurred. 4. Reassessed the appropriateness of certain staff in PREA-related roles. 5. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 6. Required the Offender population to complete additional PREA related education. 7. Distributed PREA posters throughout the facility. 8. Made changes to bed, job, and/or program assignments protocols. Distributed information on ways to report for population. 9. Distributed first responder cards to all staff. 10. Discussed PREA related topics in shift line-ups. 11. Conducted town hall meetings with population to discuss prevention. 12. Made necessary updates to facility standard operating procedures. 13. Made changes to medical and/mental health protocols or responses. 14. Conducted a sexual safety assessment.
SAMPSON CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Discussed PREA related topics in shift line-ups. 3. A staff member in question was reassigned to a nearby facility. 4. An offender was monitored in the general population, until transferred to another facility due to an unrelated incident.
SCOTLAND CI	1. Held a facility management meeting to discuss ways to prevent incidents of sexual abuse in the facility. 2. An employee resigned during the investigation phase.
WARREN CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassessed the appropriateness of certain staff in PREA-related roles. 3. Distributed PREA posters throughout the facility. 4. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 5. Made changes to bed, job, and/or program assignments protocols. 6. Distributed information on ways for offenders to report PREA allegations. 7. Discussed PREA related topics in shift line-ups. 8. Conducted town hall meetings with population to discuss prevention. 9. Conducted a sexual safety assessment. 10. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.
WESTERN CCW	1. Discussed PREA related topics in shift line-ups.

2022: The Department's Year in Review

During the 2022 calendar year, NCDPS ACJJ received a total of **766** offender and resident sexual abuse and sexual harassment allegations. The following outlines the total number of incidents reported and the outcome of investigations in 2022.

2022					
Incident Type	Substantiated	Unsubstantiated	Unfounded	Ongoing	Total
Offender on Offender Abusive Sexual Contact	10	106	42	0	158
Offender on Offender Nonconsensual Sexual Acts	4	12	4	0	20
Offender on Offender Sexual Harassment	10	159	42	0	211
Staff on Offender Sexual Abuse	19	123	97	5	239
Staff on Offender Sexual Harassment	2	71	65	0	138
Resident on Resident Abusive Sexual Contact	0	0	0	0	0
Resident on Resident Nonconsensual Sexual Act	0	0	0	0	0
Resident on Resident Sexual Harassment	0	0	0	0	0
Staff on Resident Sexual Misconduct	0	0	0	0	0
Staff on Resident Sexual Harassment	0	0	0	0	0
Total Allegations Received	45	471	250	0	766

Table 1: 2022 Incident Reports and Outcomes thru December 31, 2022. New reports received from allegations in previous years may affect data collection.

2022 Adult Correction Facilities: Substantiated Sexual Abuse Cases with Corrective Actions

2022	
Facility	Corrective Action(s)
ALBEMARLE CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made changes to bed, job, and/or program assignments protocols. 3. The aggressor resigned prior to completion of the investigation.
ALEXANDER CI	1. Discussed PREA related topics in shift line-ups. 2. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 3. This case involved an offender that manipulated a staff member into a relationship to facilitate smuggling drugs into the facility. The offender was placed in restrictive housing and later transferred and after an investigation the employee was arrested by law enforcement at the facility and resigned.
ANSON CI	1. Distributed information on ways to report for population. 2. Discussed PREA related topics in shift line-ups. 3. Abuser received disciplinary action for inappropriately touching offender. 4. Abuser received disciplinary action and was removed from ACDP Program.
CALDWELL CC	1. In both cases the offenders who were the aggressors were removed from the unit and placed in restrictive housing. Disciplinary action was taken in both cases. Neither offender returned to their unit and had no future contact with the victims.
CASWELL CC	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. The offender aggressor in this case was placed in Restrictive Housing for investigation of this incident. The offender victim has been promoted to Minimum Custody and transferred after this incident occurred. The victim was released from the agency's custody two months later in September of 2022.
EASTERN CI	1. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 2. Distributed PREA Posters throughout the facility. 3. Distributed information on ways to report for population. 4. Discussed PREA related topics in shift line-up. 5. The two aggressors were removed from Protective Custody and transferred, and the other two aggressors were removed from PCON and are currently pending transfer.
GREENE CI	1. Discussed PREA related topics in shift line-ups. 2. Conducted town hall meetings with population to discuss prevention.
HARNETT CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 4. Required the population to complete additional education. 5. Distributed PREA posters throughout the facility.
JOHNSTON CI	1. Made changes to bed, job, and/or program assignments protocols. 2. Conducted town hall meetings with population to discuss prevention. 3. Discussed PREA related topics in shift line-ups. 4. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.

	5. Victim was transferred to another facility.
LINCOLN CC	1. Implemented additional routine or unannounced rounds to prevent future incidents.
LUMBERTON CI	1. Made changes to bed, job, and/or program assignments protocols. 2. Made changes to medical and/or mental health protocols or responses. 3. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.
MAURY CI	1. An interview was conducted with staff Member; the staff member resigned during the interview. An incident report and internal investigation was conducted into the incident. The offender was placed on restrictive housing and was later transferred to another Facility.
MOUNTAIN VIEW CI	1. No corrective action taken. PREA Incident Review was completed on December 19, 2022. This substantiated case was an offender grabbing another offender. PREA protocols were followed. This incident was reported to staff when happened. Video footage obtained supported allegations.
NCCIW	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 3. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 4. Made upgrades to the physical structure of the area in which the incident occurred. 5. Reassess the appropriateness of certain staff in PREA-related roles. 6. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 7. Required the population to complete additional education. 8. Distributed PREA posters throughout the facility. 9. Made changes to bed, job, and/or program assignments protocols. 10. Discussed PREA related topics in shift line-ups. 11. Conducted town hall meetings with population to discuss prevention. 12. Made changes to medical and/or mental health protocols or responses. 13. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.
NEUSE CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 3. Made changes to bed, job, and/or program assignments protocols. 4. Discussed PREA related topics in shift line-ups. 5. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 6. The offender was placed in Restrictive housing and was transferred.
NORTH PIEDMONT CRV	1. Made changes to the number of placements of supervisory staff in the area in which the incident occurred. 2. Required all facility staff to complete Staff and Offender Relationship and Sexual Abuse and Sexual Harassment training. 3. Distributed information on ways for offenders to report PREA allegations. 4. Conducted town hall meetings with population to discuss prevention. 5. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility.

	- Pending an investigation alleged staff that involves Staff Abuse/Harassment staff are usually re-assigned, based on the circumstances surrounding the report. - Based upon the circumstances involved in the report alleged staff maybe re-assigned pending an investigation.
PAMLICO CI	- Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. - Discussed PREA related topics in shift line-ups. - Held a facility management meeting to discuss ways to improve general safety in the facility.
RICHMOND CI	- Implemented additional routine or unannounced rounds to prevent future incidents. - Reassess the appropriateness of certain staff in PREA-related roles. - Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training.
ROANOKE RIVER CI	- Implemented additional routine or unannounced rounds to prevent future incidents. - Reassess the appropriateness of certain staff in PREA-related roles. - Distributed PREA posters throughout the facility. - Distributed information on ways to report for population. - Distributed first responder cards to all staff. - Discussed PREA related topics in shift line-ups. - Conducted town hall meetings with population to discuss prevention. - Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. - The aggressor resigned. The victim was transferred. All staff completed all annual PREA required trainings immediately following the incident.
SANFORD CC	- Implemented additional routine or unannounced rounds to prevent future incidents. - Made changes to the number and placement of supervisory staff in the area in which the incident occurred. - Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. - Discussed PREA related topics in shift line-ups. - Camera angle was relocated for better view of entrance way to the shed. - Requirements for access to the shed was modified.
SOUTHERN CI	- Reassess the appropriateness of certain staff in PREA-related roles. - Distributed PREA posters throughout the facility. - Distributed information on ways to report for population. - Discussed PREA related topics in shift line-ups. - Conducted town hall meetings with population to discuss prevention. - Conducted a sexual safety assessment. - Reassignment of staff aggressor to another facility with no offender contact. - Offender aggressor was assigned to RH until disciplinary action completed and aggressor could be transferred to another facility. - Although offender was on Probation, the Facility Staff aggressor was reassigned to no offender contact for investigation to be completed.
WARREN CI	- Implemented additional routine or unannounced rounds to prevent future incidents. - Made changes to the number and placement of supervisory staff in the area in which the incident occurred. - Reassess the appropriateness of certain staff in PREA-related roles. - Distributed PREA posters throughout the facility. - Made changes to bed, job, and/or program assignments protocols. - Distributed information on ways to report for population.

	7. Discussed PREA related topics in shift line-ups. 8. Conducted town hall meetings with population to discuss prevention. 9. Held a facility management meeting to discuss ways to improve prevention of PREA incidents in the facility. 10. Offender was transferred to another facility and the staff member resigned. 11. Staff member was reassigned to another facility. The staff member eventually resigned from her position. 12. The aggressor was placed in Restrictive Housing and the victim was transferred to another facility. 13. The aggressor was transferred, and the victim was also transferred to different facilities.
WILKES CC	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Made changes to the number of placements of supervisory staff in the area in which the incident occurred. 3. Distributed PREA posters throughout the facility. 4. Made changes to bed, job, and/or program assignments protocols. 5. Distributed information on ways to report for population. 6. Discussed PREA related topics in shift line-ups. 7. Conducted town hall meetings with population to discuss prevention. 8. Made revisions to facility policies or procedures. 9. Held a facility management meeting to discuss ways to improve PREA safety in the facility. 10. Both the aggressor and the victim were transported to the hospital for evaluation and evidence collection. Law Enforcement was involved and obtained a warrant to collect evidence. The aggressor was transferred to restrictive housing and demoted to medium custody. The victim was transferred to regular population at another for his protection.

Table 1: 2022 Incident Reports and Outcomes thru December 31, 2022. New reports received from allegations in previous years may affect data collection.

Comparison Charts for Years 2021-2022

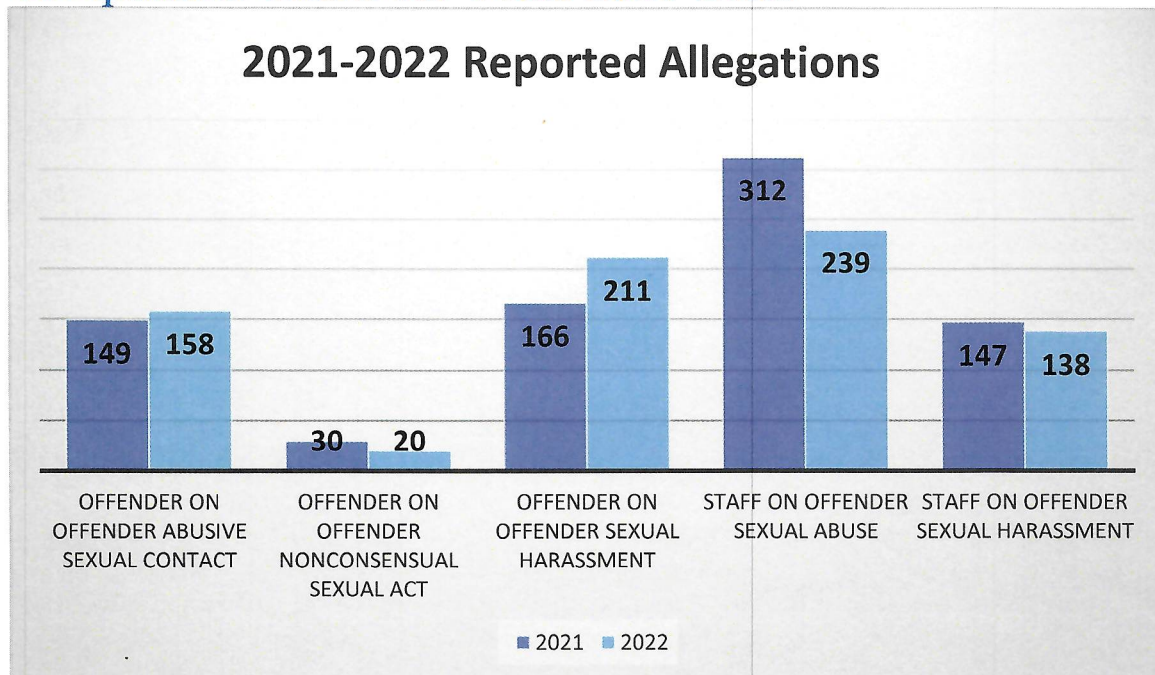


Figure 1: Prisons Reported Allegations for Years 2021-2022

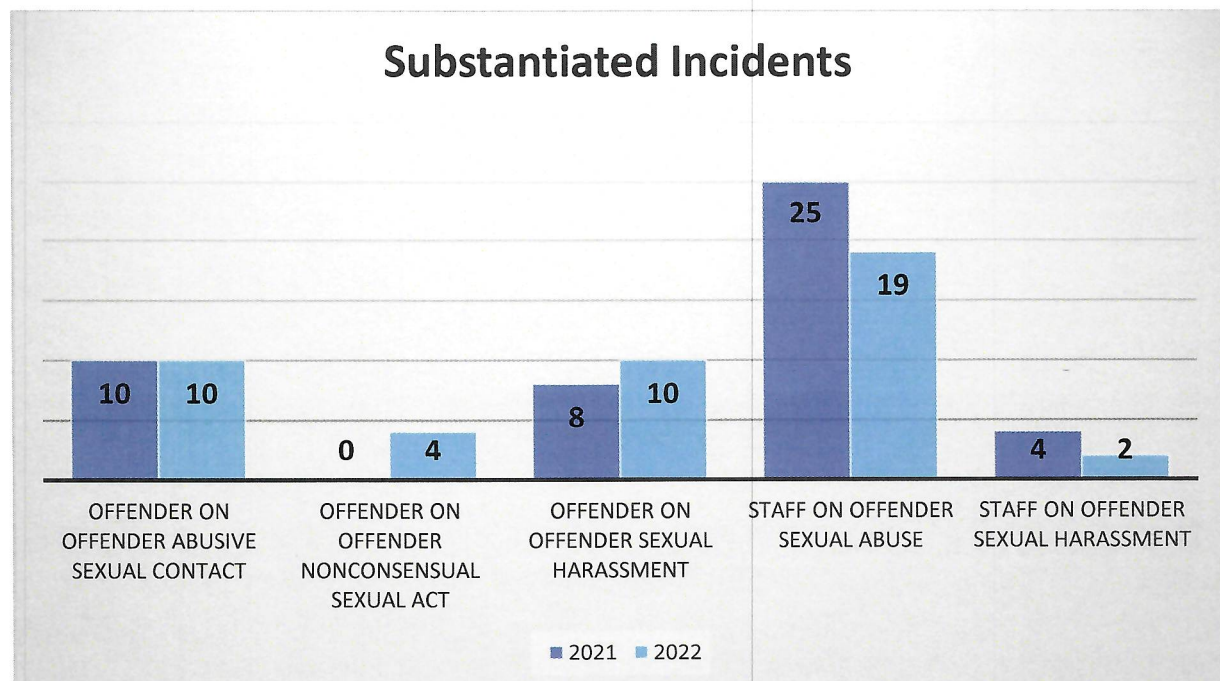


Figure 2: Prisons Substantiated Incidents for Years 2022-2021

Perpetrator Data Overview

Type of Alleged Perpetrator		
	CY 2022	CY 2021
Employee	21	22
Contractor	0	0
Volunteer	0	0
Offender	24	
Youthful Offender	0	0
Unknown	0	1
Total Unique Incidents	44	34

Figure 3: Substantiated Cases – Allegations by type of Perpetrator

Victim Data Overview

Gender of Alleged Victims		
	CY 2022	CY 2021
Male	36	37
Female	11	7

Figure 4: Substantiated Cases – Alleged Victims by Gender

Victims that Identify as a Transgender Offender		
	CY 2022	CY 2021
	3	3

Figure 5: Substantiated Cases – Alleged Victims That Identify as Transgender

Audit Findings

The North Carolina Department of Adult Correction is conducting federal compliance audits during audit Cycle IV from August 20, 2022, to August 19, 2025.

- Year 1: August 20, 2022- August 19, 2023,
- Year 2: August 20, 2023- August 19, 2024, and
- Year 3 is August 20, 2024- August 19, 2025.

Findings from these audits and previous audits for audit Cycle I-III are available on the agency's website. This information can be accessed by visiting (click here:) [Prison Rape Elimination Act \(PREA\) Office | NC DAC](#), or using the QR code shown below:



Conclusion

The **2021-2022** annual report speaks to the culture of reporting and zero-tolerance fostered by the former NCDPS Division of Adult Correction and Juvenile Justice. Going forward, the North Carolina Department of Adult Correction remains committed to eliminating sexual abuse and sexual harassment through a program of prevention, detection, response, investigation, data collection, and analysis.

NCDAC is committed to thoroughly, objectively, and promptly investigating every allegation reported. As a result of a comprehensive education and awareness program, bolstered by consistent response, investigative plans, and interviews conducted during federal audits, the resident and offender populations have expressed that they felt safe in facilities, are comfortable reporting allegations of sexual abuse and sexual harassment within our system. Additionally, the training program for staff has resulted in a demonstrated improvement in the zero-tolerance culture and investment in prevention, detection, and response protocols. The department attributes the increase in allegations received to these improvements within confinement facilities. NCDAC is proud of its improvements in culture, of its policies and procedures, and of its dedication to the elimination of sexual abuse and sexual harassment in confinement.

For more information on this Annual Report, contact the NCDAC PREA Office at:

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